

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

AVONDRE CURRIE,

Plaintiff,

-against-

SUMMONS

POLICE OFFICER GLEN BARKER, Shield No. 10067,
SERGEANT MICHAEL DISANTO, and POLICE
OFFICERS JOHN DOES #s 1-4 (names and number of
whom are unknown at present),

Index No.:

The Basis of Venue is:
Location of Incident

Defendants.

Plaintiff designates New York
County as the place of trial.

----- X

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
February 11, 2021

Yours, etc.

/s/

JACOBS & HAZAN, PLLC
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: POLICE OFFICER GLEN BARKER, Shield No. 10067, 25th Pct, 120 E 119th St, NY, NY 10035
SERGEANT MICHAEL DISANTO, 25th Pct., 120 E 119th St, NY, NY 10035

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

AVONDRE CURRIE,

Plaintiff,

-against-

POLICE OFFICER GLEN BARKER, Shield No. 10067,
SERGEANT MICHAEL DISANTO, and POLICE
OFFICERS JOHN DOES #s 1-4 (names and number of
whom are unknown at present),

Defendants.

----- X

INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff AVONDRE CURRIE, by his attorneys, Jacobs & Hazan, PLLC, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On or about March 8, 2018, at approximately 9:00 p.m., plaintiff was lawfully driving in the vicinity of 124th Street and 3rd Avenue, New York, New York when defendants pulled plaintiff's motor vehicle over, without reasonable suspicion, probable cause, or any legal justification. Notably, at no point in time relevant herein did plaintiff violate the Vehicle and Traffic law or any other law that would have justified defendants pulling plaintiff over, and at no time relevant herein did the defendants accuse plaintiff of committing a VTL violation and defendants did not issue plaintiff a summons for committing any VTL violations. After unlawfully pulling plaintiff's motor vehicle over, the defendants unlawfully forced plaintiff to exit his motor vehicle and defendants unlawfully searched plaintiff without legal justification. At no time relevant herein did the defendants recover any illegal drugs, weapons, or contraband of any kind from plaintiff's possession, custody, or control. Nevertheless, defendants unlawfully handcuffed and falsely arrested plaintiff without probable cause or legal justification. Thereafter, defendants unlawfully searched plaintiff's motor vehicle. At no time relevant herein did defendants recover any illegal drugs, weapons, or contraband of any kind from plaintiff's vehicle. Plaintiff was then transported against his will to the 25th precinct. Plaintiff was unlawfully strip searched at the 25th Precinct by defendants, without any legal justification to conduct a strip search of plaintiff. Defendants unlawfully detained plaintiff at the precinct for approximately 6-7 hours and then transported to Manhattan Central Booking whereat the unlawful detention continued. Defendants falsely

accused plaintiff of possession of marijuana and stolen property. Thereafter, on March 9, 2018, after approximately 24 hours in custody, plaintiff was arraigned in Manhattan Criminal Court and charged with crimes based upon the false and incomplete information provided to the District Attorney's Office by the defendants. Plaintiff was released from custody on his own recognizance at arraignment. Thereafter, plaintiff was forced to appear in Court on approximately 4 occasions before all charges were dismissed and sealed in their entirety on June 19, 2018. Defendants maliciously prosecuted plaintiff and denied plaintiff the right to due process/ right to a fair trial when defendants initiated a criminal prosecution against plaintiff without probable cause based upon false and incomplete evidence/ information provided to the Manhattan District Attorney's Office by defendants. Those defendants that did not physically arrest plaintiff or communicate with the District Attorney's Office are liable to plaintiff for failing to intervene and stop the unlawful conduct against plaintiff that was being committed by their fellow officers. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, unlawfully strip searched, confined, falsely arrested, maliciously prosecuted, and denied plaintiff the right to due process/ right to a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York. Additionally, defendants' violation of plaintiff's Constitutional Rights caused plaintiff to lose income and prevented plaintiff from renewing his Security Guard License with New York State in a timely manner.

PARTIES

2. Plaintiff AVONDRE CURRIE is a resident of the state of New York.
3. Defendant POLICE OFFICER GLEN BARKER, Shield No. 10067, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. Defendant POLICE OFFICER GLEN BARKER, Shield No. 10067, is and was at all times relevant herein, assigned to the 25th Precinct.
5. Defendant POLICE OFFICER GLEN BARKER, Shield No. 10067, is being sued in his individual and official capacity.
6. Defendant SERGEANT MICHAEL DISANTO, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
7. Defendant SERGEANT MICHAEL DISANTO, is and was at all times relevant herein, assigned to the 25th Precinct.
8. Defendant SERGEANT MICHAEL DISANTO, is being sued in his individual and official capacity.
9. Defendants New York City Police Officers John Does #s 1-4 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

10. Defendants Police Officers John Does #s 1-4 are being sued in their individual and official capacities.

11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

12. The City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

13. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

14. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

15. On March 8, 2018, at approximately 9:00 p.m., plaintiff was lawfully driving in the vicinity of 124th Street and 3rd Avenue, New York, New York when defendants unlawfully pulled plaintiff over, using the turret lights and sirens on their police vehicle.

16. At no time relevant herein, prior to stopping plaintiff did the defendant police officers have any objective factual basis to believe plaintiff committed a crime, was about to commit a crime, or was in the process of committing a crime.

17. At no time relevant herein did plaintiff commit a crime, nor did the defendant police officers have an objective factual basis to believe he committed a crime on March 8, 2018.

18. At no time relevant herein was plaintiff in possession of any illegal, drugs, weapons, or contraband of any kind, nor did the defendant police officers have an objective reason to believe plaintiff possessed illegal drugs, weapons, or contraband of any kind.

19. Defendants pulled plaintiff's vehicle over and seized plaintiff without reasonable suspicion, probable cause, or any legal justification.

20. At no time relevant herein did plaintiff violate the Vehicle and Traffic law or any other statute, nor did plaintiff commit a crime or violate the law in any way prior to being pulled over by the defendants.

21. Notably, the defendants never provided plaintiff with an explanation for why they pulled him over, and defendants did not issue plaintiff a summons for or charge plaintiff with committing a traffic infraction or for violating Vehicle and Traffic Law in any manner.

22. Defendants never provided plaintiff with a legal basis for pulling plaintiff's vehicle over.

23. When plaintiff asked defendants why they stopped him, one of the officers sarcastically stated that they did not like the air freshener plaintiff had hanging from his rear-view mirror.

24. Defendants approached plaintiff's vehicle and ordered plaintiff to exit the vehicle.

25. Plaintiff complied with defendants' orders, and upon exiting his vehicle the defendants proceeded to unlawfully search plaintiff's person without probable cause or any legal justification to conduct such a search..

26. The police officers did not recover any illegal drugs, weapons, or contraband of any kind pursuant to their unlawful search of plaintiff's person.

27. Defendants unlawfully searched the entire vehicle, including the locked trunk and the glove compartment, without probable cause or any legal justification.

28. At no time relevant herein did defendants recover any illegal drugs, weapons, or contraband of any kind from plaintiff's vehicle pursuant to the unlawful search of the vehicle.

29. Defendants unlawfully handcuffed and falsely arrested plaintiff without probable cause or legal justification.

30. The defendants lacked any objective facts or evidence to establish probable cause to believe plaintiff committed a crime or violated the law in any manner.

31. Thereafter, the defendants placed plaintiff in the rear of their police vehicle and unlawfully searched plaintiff's motor vehicle, without probable cause or any legal basis.

32. Defendants damaged plaintiff's vehicle during the unlawful search of the vehicle.

33. Specifically, defendants ripped the seats in plaintiff's vehicle and damaged the trunk's locking mechanism.

34. Plaintiff spent \$300 to have the damage to his vehicle caused by defendants repaired.

35. Defendants also unlawfully searched the passengers in plaintiff's vehicle, and defendants alleged that they recovered "one small bag" containing marihuana from the pants pocket of one of the passengers in plaintiff's vehicle.

36. Defendants did not possess a factual basis to believe plaintiff had knowledge that the passenger had a small bag of marihuana in his pants pocket.

37. Defendants did not have an objective factual basis to establish probable cause to allege that plaintiff had possession, custody, or control of the marihuana the defendants allegedly recovered from the passenger's pants pocket.

38. At no time relevant herein did defendants recover any illegal drugs, weapons, or contraband of any kind from plaintiff's possession, custody, or control.

39. Defendants unlawfully handcuffed and falsely arrested plaintiff without probable cause or legal justification.

40. The defendants lacked any objective facts or evidence to establish probable cause to believe plaintiff committed a crime or violated the law in any manner.

41. All of the occupants in the vehicle were arrested by defendants and charged with possession of the marijuana that was allegedly recovered from the passenger's pants pocket.

42. Defendants intentionally did not inform the District Attorney's Office that the marihuana was allegedly recovered from the pants pocket of one of the passengers in the vehicle

43. Instead of specifying that they recovered the marijuana from the pants pocket of an individual, the defendants intentionally withheld that information from and misled the District Attorney's Office by informing the District Attorney's Office that they recovered a small bag of marihuana from plaintiff's vehicle.

44. The defendants then unlawfully transported plaintiff to the 25th precinct against his will.

45. Upon arriving at the 25th Precinct, the defendants lodged plaintiff in a holding cell where they conducted a second unlawful search of plaintiff's person, without probable cause.

46. The officers did not recover any illegal drugs, weapons or contraband pursuant to their second unlawful search of plaintiff's person.

47. Then, the defendants unlawfully ordered plaintiff to remove all of his clothing and defendants conducted an unlawful strip search of plaintiff's person, without probable cause or legal justification to conduct a strip search.

48. . The strip search was embarrassing and extremely emasculating for plaintiff.

49. Plaintiff was required to turn around, spread his buttocks and cough, and to lift his scrotum so that the defendants could inspect underneath.

50. The defendants did not recover any illegal drugs, weapons or contraband pursuant to the strip search of plaintiff, and the strip search caused plaintiff to suffer extreme emotional distress.

51. After the defendants unlawfully strip-searched plaintiff, they brought him to the front desk of the precinct to lodge his arrest and any property in plaintiff's possession.

52. Defendants recovered a Postmates credit card from plaintiff's wallet while they were vouchering his property.

53. Plaintiff was a Postmates employee and the credit card belonged to him.

54. Postmates pays its employees by transferring income earned onto the employees' Postmates' credit card.

55. The Postmates credit card does not have the employees name or any name printed on the card and instead lists a code on the face of the card.

56. Defendants alleged without any objective factual basis and falsified allegations against plaintiff that the Postmates Credit Card was stolen and belonged to another individual.

57. . Thus, the officers lacked any factual basis to believe the Postmate's Credit Card recovered from claimant's wallet belonged to someone else.

58. Plaintiff informed defendants that the card belonged to him and that he was an employee for Postmates.

59. Nevertheless, without any factual basis the officers falsely accused plaintiff of possessing someone else's Postmate's card and charged plaintiff with Criminal Possession of Stolen Property in the Fifth Degree (PL 165.40) which is a felony.

60. Defendants intentionally failed to inform the District Attorney's Office that the Postmate's credit card did not have a name printed on the face of the card and defendants could not, therefore, know whether the card belonged to plaintiff or someone else.

61. Defendants informed the District Attorney's Office in a conclusory manner that the card did not belong to plaintiff without providing any basis for the defendant's conclusion.

62. . However, the District Attorney's Office required the defendants to identify the individual who defendants claimed the credit card belonged to in order to charge plaintiff with said crime.

63. To avoid being disciplined for accusing plaintiff of possessing another individual's credit card without any factual basis to make such an accusation, the officers fabricated an allegation that they also recovered a driver's license belonging to a female and they were able to identify the owner of the Postmate's Credit Card using the identification.

64. The defendants were not able to verify that the Postmate's credit card belonged to another individual because the card belonged to plaintiff and was not stolen, and all allegations made by defendants regarding their confirmation that the card belonged to someone else are wholly fabricated.

65. The defendants unlawfully fingerprinted, photographed, and detained plaintiff in the holding cell at the precinct for approximately 6-7 hours, and then transported plaintiff to New York County Central Booking.

66. On March 9, 2018 at approximately 9:00 pm plaintiff was arraigned in New York County Criminal Court and falsely charged with Criminal Possession of Stolen Property in the Fifth Degree (PL 165.40) and Unlawful Possession of Marihuana (PL 221.05), crimes he did not commit and that defendants lacked probable cause to accuse him of committing.

67. Plaintiff was released from custody on his own recognizance at arraignment.

68. Plaintiff was required to return to Court on approximately 4 occasions and to endure a 3-month criminal prosecution before all charges were dismissed and sealed in their entirety on June 19, 2018.

69. The false arrest and malicious prosecution of plaintiff also caused plaintiff to miss a full day of work without pay as a security guard on March 9, 2018 because he was in the custody of the defendants and could not report to work.

70. Plaintiff lost \$128 in income because he could not work on March 9, 2018 while he was unlawfully detained by defendants.

71. Additionally, shortly before the underlying arrest and criminal prosecution of plaintiff occurred on March 8, 2018, plaintiff applied to the New York State Division of Licensing Services to have his security guard license renewed which was required for him to continue working as a security guard.

72. However, after plaintiff was arrested, he received a letter from the New York State Division of Licensing Services, dated March 14, 2018 advising plaintiff that they were notified that claimant was charged with Criminal Possession of Stolen Property and the charge

prevented them from renewing his license unless he was able to show them proof that the charge was dismissed within 30 days.

73. The criminal charges brought against plaintiff continued to be pending against plaintiff 30 days after he received the letter from the New York State Division of Licensing Services and therefore his application to have his security guard license renewed was denied.

74. Plaintiff attempted to get the Security Guard license renewed after the criminal charges were dismissed and sealed on June 19, 2018, but he was unable to get the license renewed in a timely manner and his employer suspended plaintiff on August 18, 2018 and terminated plaintiff on August 27, 2018.

75. Plaintiff was unable to secure another job to replace the income he would have earned as a Security Guard for approximately 6 months after he was fired and lost income during that time period.

76. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, denial of due process/ right to a fair trial, and unlawful strip search of plaintiff.

77. The unlawful stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, denial of due process/ right to a fair trial, and unlawful strip search of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment, and Fourteenth Amendment Rights

78. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 77 with the same force and effect as if more fully set forth at length herein.

79. The individually named police officer defendants while acting in concert and within the scope of their authority, damaged plaintiff's vehicle, caused plaintiff to be unlawfully stopped, questioned, frisked, seized, unlawfully searched on two occasions, unlawful search of plaintiff's vehicle, unlawfully strip searched, falsely arrested, falsely imprisoned, maliciously prosecuted, and denied the right to a fair trial without probable cause in violation of plaintiff's right to be free of an unreasonable seizure and denial of due process under the Fourth and Fifth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

80. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 79 with the same force and effect as if more fully set forth at length herein.

81. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

82. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

83. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

84. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

85. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 84 with the same force and effect as if more fully set forth at length herein.

86. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

87. The conduct of defendants in stopping, frisking, and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

88. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

89. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

90. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

91. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 90 with the same force and effect as if more fully set forth at length herein.

92. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

93. Defendants lacked probable cause to search plaintiff on two occasions, once before he was arrested and once at the precinct.

94. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

95. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

96. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

97. Plaintiff repeats and realleges paragraphs 1 through 96 as if fully set forth herein.

98. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

99. Defendants commenced and continued a criminal proceeding against plaintiff.

100. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

101. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

102. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

103. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Violation of Plaintiff's Fifth Amendment and Fourteenth Amendment Rights Denial of Due Process/ Right to a Fair Trial

104. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 103 with the same force and effect as if fully set forth herein.

105. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the New York County District Attorney's Office.

106. Defendants filled out false and misleading police reports and a summons and forwarded them to the New York County Criminal Court..

107. Defendants signed a false and misleading summons and forwarded it to the New York County Criminal Court..

108. In withholding/creating false evidence against plaintiff, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process/ a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

109. As a result of the foregoing, plaintiff, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings, and deprivation of his constitutional rights.

110. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SEVENTH CAUSE OF ACTION

Unlawful Strip Search

111. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 110 with the same force and effect as if more fully set forth at length herein.

112. Plaintiff was strip-searched by defendants without an individualized reasonable suspicion or probable cause to believe plaintiff was concealing weapons or other contraband underneath her clothing based on a crime charged, the particular characteristics of the arrestee, and/or the circumstances of the arrest.

113. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

Failure to Intervene

114. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 113 with the same force and effect as if more fully set forth at length herein.

115. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

116. Defendants failed to intervene to prevent the unlawful conduct described herein.

117. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

118. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

\

JURY DEMAND

119. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Avondre Currie demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
February 11, 2021

By: /s/
DAVID M. HAZAN
JACOBS & HAZAN, PLLC
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
February 11, 2021

/s/
DAVID M. HAZAN